

CV-26-000086 BRADFORD, PATTI vs KELLERMEYER BERGENSONS SERVICES LLC – a) Defendant’s Motion to Compel Arbitration and to Stay Proceedings –GRANTED. b) Defendant Amazon.com Services LLC’s Joinder to Kellermeyer Bergensons Services LLC’s and Chio Saechao’s Motion to Compel Arbitration and to Stay Proceedings - GRANTED. c) Defendant’s Motion to Stay Proceedings Pending Decision on Motion to Compel Arbitration and to Stay Proceedings –GRANTED

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a) GRANTED. Plaintiff’s objections: To Amick Declaration: OVERRULED OVERRULED. SUSTAINED OVERRULED OVERRULED. To Bradford Declaration: All OVERRULED. Defendants have met their burden of establishing the existence of a written arbitration agreement executed by Plaintiff on October 12, 2021. Plaintiff does not dispute that she electronically signed the Mutual Agreement to Arbitrate as part of the onboarding process. Accordingly, the Court finds a valid arbitration agreement was formed. (Code Civ. Proc., § 1281.2; Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.) The Court further finds that Plaintiff’s claims fall within the broad scope of the agreement. The agreement expressly encompasses employment-related disputes, including claims for discrimination, harassment, retaliation, wage-and-hour violations, wrongful termination, and related statutory causes of action. The claims alleged in the Complaint arise from Plaintiff’s employment relationship and are therefore subject to the arbitration provision. The agreement also contains a delegation clause providing that the arbitrator shall have exclusive authority to resolve disputes concerning the interpretation, applicability, validity, and enforceability of the arbitration agreement. The Court finds the delegation language is sufficiently clear and unmistakable to satisfy the standards set forth in *Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, *First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, and *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231. The Court therefore does not reach the merits of the unconscionability argument. b) GRANTED. Although Amazon is not a signatory to the arbitration agreement, the Court finds Amazon has established two independent grounds permitting enforcement of the agreement. First, the arbitration agreement expressly provides that KBS customers at whose facilities employees perform work are intended third-party beneficiaries of the agreement. The evidence establishes Plaintiff worked at an Amazon facility pursuant to KBS’s contractual relationship with Amazon. The Court therefore finds Amazon qualifies as an intended third-party beneficiary entitled to enforce the arbitration agreement. (*Ronay Family Limited Partnership v. Tweed* (2013) 216 Cal.App.4th 830, 838-839.) Second, Plaintiff’s claims against Amazon are predicated upon allegations that Amazon and KBS jointly employed Plaintiff and jointly participated in the acts giving rise to liability. The Complaint repeatedly alleges Amazon and KBS exercised shared authority over Plaintiff’s employment and acted collectively with respect to the conduct challenged in this action. Under these circumstances, equitable estoppel principles permit Amazon to enforce the arbitration agreement. (*Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 786-788; *Goldman v. KPMG LLP* (2009) 173 Cal.App.4th 209, 219-221.) The Court therefore finds Plaintiff’s claims against Amazon are subject to the same arbitration agreement governing Plaintiff’s claims against KBS and Saechao. Amazon’s Joinder is GRANTED. c) GRANTED. Because the Court is granting the Motion to Compel Arbitration, a stay of this action is required pursuant to Code of Civil Procedure section 1281.4. Section 1281.4 provides that when a court orders arbitration of a controversy that is an issue involved in a pending action, the court shall stay the action until arbitration is completed. The stay is mandatory. (*Twentieth Century Fox Film Corp. v. Superior Court* (2000) 79 Cal.App.4th 188, 192.) The Court finds that all claims asserted in the Complaint are subject to arbitration and that no useful purpose would be served by permitting the litigation to proceed simultaneously with arbitration. Accordingly, the action is stayed in its entirety pending completion of arbitration and issuance of an arbitration award. The August 3, 2026 Case Management Conference is vacated and a Case Status Review is set for December 3, 2026 at 8:30 a.m. The Court expects progress to be made by that time. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

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a) GRANTED.

Plaintiff's objections:

To Amick Declaration:

OVERRULED

OVERRULED.

SUSTAINED

OVERRULED

OVERRULED.

To Bradford Declaration:

All OVERRULED.

Defendants have met their burden of establishing the existence of a written arbitration agreement executed by Plaintiff on October 12, 2021. Plaintiff does not dispute that she electronically signed the Mutual Agreement to Arbitrate as part of the onboarding process. Accordingly, the Court finds a valid arbitration agreement was formed. (Code Civ. Proc., § 1281.2; Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

The Court further finds that Plaintiff's claims fall within the broad scope of the agreement. The agreement expressly encompasses employment-related disputes, including claims for discrimination, harassment, retaliation, wage-and-hour violations, wrongful termination, and related statutory causes of action. The claims alleged in the Complaint arise from Plaintiff's employment relationship and are therefore subject to the arbitration provision.

The agreement also contains a delegation clause providing that the arbitrator shall have exclusive authority to resolve disputes concerning the interpretation, applicability, validity, and enforceability of the arbitration agreement. The Court finds the delegation language is sufficiently clear and unmistakable to satisfy the standards set forth in *Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, *First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, and *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231.

The Court therefore does not reach the merits of the unconscionability argument.

b) GRANTED.

Although Amazon is not a signatory to the arbitration agreement, the Court finds Amazon has established two independent grounds permitting enforcement of the agreement. First, the arbitration agreement expressly provides that KBS customers at whose facilities employees perform work are intended third-party beneficiaries of the agreement. The evidence establishes Plaintiff worked at an Amazon facility pursuant to KBS's contractual relationship with Amazon. The Court therefore finds Amazon qualifies as an intended third-party beneficiary entitled to enforce the arbitration agreement. (Ronay Family Limited Partnership v. Tweed (2013) 216 Cal.App.4th 830, 838-839.)

Second, Plaintiff's claims against Amazon are predicated upon allegations that Amazon and KBS jointly employed Plaintiff and jointly participated in the acts giving rise to liability. The Complaint repeatedly alleges Amazon and KBS exercised shared authority over Plaintiff's employment and acted collectively with respect to the conduct challenged in this action.

Under these circumstances, equitable estoppel principles permit Amazon to enforce the arbitration agreement. (Garcia v. Pexco, LLC (2017) 11 Cal.App.5th 782, 786-788; Goldman v. KPMG LLP (2009) 173 Cal.App.4th 209, 219-221.)

The Court therefore finds Plaintiff's claims against Amazon are subject to the same arbitration agreement governing Plaintiff's claims against KBS and Saechao.

Amazon's Joinder is GRANTED.

c) GRANTED.

Because the Court is granting the Motion to Compel Arbitration, a stay of this action is required pursuant to Code of Civil Procedure section 1281.4.

Section 1281.4 provides that when a court orders arbitration of a controversy that is an issue involved in a pending action, the court shall stay the action until arbitration is completed. The stay is mandatory. (Twentieth Century Fox Film Corp. v. Superior Court (2000) 79 Cal.App.4th 188, 192.)

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